

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

An Appeal against the order of the High Court of the Sabaragamuwa Province in the case bearing number 6123/Revision.

Case No: CA (PHC) 165/2022

High Court of Kegalle: 6123/21
Revision

Primary Court Case No: 88774

Officer in Charge,
Police Station,
Ruwanwella.

Plaintiff

Vs.

Galpatha Ralalage Wijerathna,
Dewek Kanda, Ruwanwella.

1st Party Respondent

Galpatha Ralalage Somarathna,
Dewek Kanda, Ruwanwella.

2nd Party Respondent

And between

Galpatha Ralalage Wijerathna,
Dewek Kanda, Ruwanwella.

1st Party Respondent – Petitioner

Vs.

Galpatha Ralalage Somarathna,
Dewek Kanda, Ruwanwella.

2nd Party Respondent- Respondent

Officer in Charge,
Police Station,
Ruwanwella.

Plaintiff - Respondent

And between

Galpatha Ralalage Somarathna,
Dewek Kanda, Ruwanwella.

**2nd Party Respondent- Respondent-
Appellant**

Vs.

Galpatha Ralalage Wijerathna,
Dewek Kanda, Ruwanwella.

**1st Party Respondent – Petitioner –
Respondent**

Officer in Charge,
Police Station,
Ruwanwella.

Plaintiff – Respondent- Respondent

And now between

Galpatha Ralalage Somarathna,
Dewek Kanda, Ruwanwella.

**2nd Party Respondent- Respondent-
Appellant
(Deceased)**

Roshan Viduranga Somarathna,
Dewek Kanda, Ruwanwella.

**Substituted 2nd Party Respondent-
Respondent – Appellant.**

Vs.

Galpatha Ralalage Wijerathna,
Dewek Kanda, Ruwanwella.

**1st Party Respondent – Petitioner –
Respondent - Respondent**

Officer in Charge,
Police Station,

Ruwanwella.

Plaintiff – Respondent- Respondent-
Respondent

Before: **Damith Thotawatte, J.**
K.M.S. Dissanayake, J.

Counsels: Migara Kodithuwakku with Tharinduni L.B. instructed by Nalin Jayaweera for the Substituted 2nd Party Respondent-Respondent – Appellant.

Jagath Nanayakkara with Lahiru Vidushan for the Respondent.

Tharaka Kodagoda, SC for the 2nd and 3rd Respondents.

Argued: 08.05.2026

Written submissions 23.03.2026 by Substituted 2nd Party Respondent-tendered on: Respondent – Appellant.

29.04.2026 by 1st Party Respondent – Petitioner – Respondent - Respondent.

Judgment Delivered: 25.08.2026

Thotawatte, J.

Introduction

This appeal is preferred by the Substituted 2nd Party Respondent-Respondent-Appellant (hereinafter referred to as the “Appellant”) against the judgment dated 03.08.2022 of the learned High Court Judge of the Provincial High Court of the Sabaragamuwa Province holden in Kegalle, delivered in revision application No. HCR 6123/2021. By that judgment, the learned High Court Judge set aside the order dated 15.02.2021 made by the learned Magistrate of Ruwanwella, functioning as the Primary Court Judge in case

No. 88774 under Part VII of the Primary Courts' Procedure Act, No. 44 of 1979 (the "PCP Act").

The original Appellant, Galpatha Ralalage Somarathna, has passed away during the pendency of this appeal and Roshan Viduranga Somarathna has been substituted in his place as the Substituted 2nd Party Respondent-Respondent-Appellant. For convenience, the term "Appellant" will, where the context so requires, include the original Appellant and the person substituted in his place.

Factual Matrix

The 1st Party Respondent-Petitioner-Respondent-Respondent (as per amended caption dated 08.12.2025), Galpatha Ralalage Wijerathna (hereinafter sometimes referred to as the "Respondent"), and the original Appellant, Galpatha Ralalage Somarathna, were parties to a dispute concerning the Respondent's alleged right to use a pathway traversing land possessed by the Appellant. According to the Respondent, a pathway or roadway approximately three feet in width had been used for about ten years to reach his paddy field and rubber land. He alleged that the Appellant interfered with that use by placing or maintaining a closed gate, and placing flowerpots and other impediments at or near the entrance.

The Respondent lodged complaints at the Ruwanwella Police Station on 06.09.2020 and 06.10.2020 concerning the dispute. Consequent thereto, the Officer-in-Charge of the Ruwanwella Police Station filed information in the Primary Court under section 66(1)(a) of the Act on 28.09.2020.

The Appellant denied that the claimed strip of land constituted a roadway available to the 1st Respondent. His position was that the narrow pathway within or from his gate was for his private use, that it had never been used by the Respondent as a right of way, and that the latter had other means of access to his paddy field and rubber land. Allegations were also made that the Police had acted partially.

The competing positions thus disclosed a dispute concerning the existence, prior exercise and obstruction of an alleged right of way. It is not disputed that the land over which the pathway said to run is in the possession of the Appellant. The relief claimed by the Respondent was not possession of that land but protection of the alleged right to use it.

Progression of Litigation

Proceedings before the Primary Court

Both parties having filed affidavits, counter-affidavits, documentary material and written submissions, the learned Primary Court Judge delivered the order dated 15.02.2021 holding in favour of the Appellant. The order proceeded under section 68(1), on the footing that the dispute concerned possession of the subject matter. It declared, in substance, that the 1st Party Respondent was not in possession and directed the removal of obstructions or impediments affecting the possession of the Appellant.

The learned Primary Court Judge failed to distinguish between a dispute relating to possession of land under section 68 and a dispute concerning a right of way under section 69. The Respondent did not claim possession of the land over which the pathway was alleged to run; he claimed only a right to use that pathway. Therefore, the question whether the Respondent was in possession of the land was irrelevant to the determination of his claim.

Secondly, it is incomprehensible what obstructions or impediments affecting the Appellant's possession the learned Magistrate intended to have removed, as even the Appellant does not claim that any obstruction or impediment was or had been placed by the Respondent so as to prevent his possession of the land.

Proceedings before the Provincial High Court

Being dissatisfied with the order of the learned Magistrate, the Respondent invoked the revisionary jurisdiction of the Provincial High Court, contending principally that the Primary Court had applied section 68 when the dispute was required to be determined under section 69. The learned High Court Judge, having considered the written submissions, set aside the Primary Court order on 03.08.2022. The High Court held, correctly, that an order under section 68 was inappropriate and that the dispute fell to be determined under section 69.

However, the learned High Court Judge further observed that a person seeking to establish a right must prove his entitlement to exercise that right. That observation was followed by a parenthetical statement within brackets, (මහේත්තාන් අධිකරණයේ චාරිත්‍රාංග 78 පිටුව). The meaning and relevance of which could not be ascertained either by this Court or by learned Counsel appearing for the parties.

Grounds of Appeal

The grounds emerging from the Petition of Appeal and the Appellant's written submissions may be stated as follows;

- the learned High Court Judge erred in law by interfering, in the exercise of revisionary jurisdiction;
- the 1st Party Respondent failed to establish the existence of, or his entitlement to exercise, the alleged right of way; and
- the learned High Court Judge failed properly to evaluate the affidavits and documentary material bearing upon that entitlement;

The Statutory Scheme and Nature of the Inquiry

Part VII of the Act provides a special, summary and preventive jurisdiction in respect of disputes affecting land where a breach of the peace is threatened or likely. Section 66(1)(a) authorizes a police officer to file information where such a dispute exists. In *Punchi Nona v. Padumasena and Others*¹, it was recognized that where information is filed by a police officer under section 66(1)(a), the Primary Court is vested with jurisdiction to inquire into the dispute described in the information.

Section 69 applies where the dispute concerns a right to land other than possession. Under section 69(1), the Primary Court Judge must determine who is entitled to the right which is the subject of the dispute. An order under section 69(2) may declare a specified person entitled to that right until deprived of it by an order or decree of a competent court and may prohibit disturbance or interference with its exercise.

In *Ramalingam v. Thangarajah*², His Lordship Sharvananda J. explained that the word "entitled" in section 69 connotes ownership of the disputed right and requires the Court to determine which party has acquired that right or is entitled, for the time being, to exercise it. Such determination is preventive and provisional and does not constitute a final adjudication of title or servitude, which remains within the province of a competent civil court.

¹ (1994) 2 Sri L.R. 117

² (1982) 2 Sri LR 693

Analysis of the Grounds of Appeal

Whether the High Court was entitled to interfere

The learned Magistrate treated the dispute as one relating to possession and proceeded to determine it under section 68(1). However, the rival affidavits, as characterized by both parties, disclosed that the true dispute was whether the Respondent was entitled to use a pathway across land possessed by the Appellant. The right asserted was therefore in the nature of a servitude falling within section 69. The application of section 68 was not a mere technical or procedural error; it fundamentally altered the statutory inquiry and diverted attention from the evidence relevant to the right claimed. As that error was material and capable of affecting the ultimate determination, it warranted the exercise of revisionary jurisdiction. The learned High Court Judge was therefore justified in interfering with the order of the learned Magistrate.

Scope of the High Court's Revisionary Intervention

The Appellant contends that the Respondent failed to establish any right to use the disputed pathway. The Respondent relies on his use of the pathway for nearly ten years, his complaints to the Police, and the affidavits and documents tendered to the Primary Court. The Appellant denies both the existence and the previous exercise of that right and relies, *inter alia*, on the availability of alternative access.

Those competing claims required determination under section 69. Having proceeded under section 68, the learned Magistrate did not properly determine them. Isolated observations made in applying the wrong statutory test cannot be treated as findings under section 69. Nor should this Court, on the limited material before it, undertake that fact-sensitive inquiry for the first time on appeal.

Revision is an extraordinary and discretionary jurisdiction concerned principally with legality, jurisdiction, procedural regularity, and the prevention of miscarriages of justice. Accordingly, in proceedings under the Primary Courts' Procedure Act, the High Court does not conduct a fresh inquiry into the merits or receive fresh evidence. However, High Court is not precluded from intervening where the learned Magistrate has misdirected herself in law, failed to consider material evidence, relied upon matters unsupported by the record, misunderstood the statutory requirements or reached conclusions that cannot reasonably be sustained on the evidence. In such circumstances, its jurisdiction necessarily extends to examining the evidentiary foundation of the Magistrate's findings for the limited purpose of determining whether they were lawfully reached.

Whether the High Court fully cured the Primary Court's error

The learned High Court Judge correctly held that section 69 governed the dispute. That conclusion alone, however, did not constitute the determination required by section 69(1). If the intention was merely to set aside the Primary Court order, the matter ought to have been remitted to the Primary Court with directions to complete the section 69 inquiry. If the intention of the learned High Court Judge was to recognize the claimed right, the judgment ought to have contained findings, based on the original record, as to the existence and nature of that right, its prior exercise, and the person entitled to exercise it. The judgment discloses no reasons supporting its conclusion that the Respondent was entitled to the claimed right.

In the instant case learned Magistrate had applied section 68 to a dispute governed by section 69 and consequently directed the inquiry to possession rather than entitlement to the claimed right of way, while the High Court, although identifying the applicable provision, failed to make the reasoned statutory determination required under it. In the circumstances, the matter must be reconsidered under section 69 upon the entirety of the original record, and a clear operative order made identifying the existence, course and extent of the claimed right, the person entitled for the time being to exercise that right, and any interference to be prohibited pending the final determination of the parties' rights by a competent civil court.

Accordingly, this matter is to be remitted to the Magistrate's Court of Ruwanwella for a fresh determination and the making of an order according to law.

The remittal is not an invitation to reopen the proceedings from the beginning. The inquiry has already generated affidavits, counter-affidavits, documents and written submissions. Subject to any unavoidable procedural matter arising from the death and substitution of the original 2nd Party Respondent, the fresh order should be made on that original material. No party is to be permitted to improve the case previously presented by adducing fresh evidence merely because the earlier courts misdirected themselves.

Conclusion

The appeal is allowed in part. The judgment dated 03.08.2022 of the Provincial High Court of the Sabaragamuwa Province holden in Kegalle in HCR 6123/2021 and the order dated 15.02.2021 of the Primary Court of Ruwanwella in case No. 88774 are both set aside.

The Registrar of this Court is directed to transmit the record, together with a certified copy of this judgment, to the Magistrate's Court of Ruwanwella forthwith.

In view of the summary and preventive nature of the jurisdiction, the fresh order shall be delivered as expeditiously as practicable, preferably within three months of the record being received by that Court.

In the circumstances, there shall be no order as to costs.

Judge of the Court of Appeal

K.M.S. Dissanayake, J.

I agree

Judge of the Court of Appeal